

Message History (3)

On 8/4/2026 5:22:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013137-072926

Body:

RE: PUBLIC RECORDS REQUEST of July 29, 2026, **Reference # W013137-072926.**

Dear Brian C,

The City received the below records request from you on July 29, 2026.

Under the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records.

This is a new, narrowed request following the Department's July 29, 2026 denial of PRA W013113-072526. As you are aware, that denial withheld the requested records in their entirety, producing no segregable portions (Gov. Code § 7922.525(b)), and stated that each entry in the Department's Flock network audit "documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search." This request does not seek those fields.

1. The San Mateo Police Department's Flock Safety ALPR network-audit entries for searches performed against the Department's cameras and network for the period January 1, 2024 through June 30, 2024, by or attributed to the account or user credentials of the Costa Mesa Police Department — in particular the searching user recorded in the Department's Flock records as Robert Josett (abbreviated to "R. Jos" in the export's "Name" field) — limited to the following fields for each entry: the searching organization/agency name, the searching user's name as maintained in the export, the date and time of the search, the search type, the number of networks searched, and the number of devices searched.

Expressly excluded from this request: the stated reason, the offense type or category, any case number, and the search "time frame" or look-back window.

Robert Josett was suspended by the Costa Mesa Police Department in December 2023 and was later terminated without reinstatement.

For context: the Department produces its own Flock search-audit exports on a rolling monthly basis under W012541-041426 — most recently the May 2024 export, produced on July 29, 2026 — with each row containing the search date and time, the network count, and a free-text justification. At least 65 California law enforcement agencies, including seven San Mateo County police departments (Belmont, East Palo Alto, Foster City, Menlo Park, Pacifica, San Bruno, and South San Francisco), publish search audit data from the same platform on their public transparency portals.

If the Department maintains that any requested field is exempt, please produce the entries with that field redacted, identify the specific exemption relied upon for each field withheld, and produce all reasonably segregable non-exempt portions (Gov. Code §§ 7922.525(b), 7922.540). Please provide responsive records in their native electronic format (CSV or the equivalent Flock export), and the determination required within 10 days under Gov. Code § 7922.535.

Thank you for your assistance.

Brian

As you were notified under request *W013113-072526*, records reflecting searches conducted by outside law enforcement agencies accessing the Department's ALPR data through the Flock Safety network sharing platform are exempt from disclosure for the reasons set forth below:

The requested records, in their entirety, are exempt from disclosure pursuant to Government Code § 7923.600, Government Code § 7922.000, Evidence Code § 1040, and Civil Code § 1798.90.55.

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by a law enforcement agency in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency's ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.

Automated License Plate Reader (ALPR) Exemption (Civil Code § 1798.90.55).

In addition, your request has been denied pursuant to Government Code 7927.705, as records prohibited from

disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

In addition, the Flock Platform does not display the names of officers from external agencies on our portal. Any such information, if available, must be requested directly from the originating agency.

Our internal search history is being provided to you on a rolling basis under Request W012541-041426, in addition to the current live spreadsheet available through our transparency portal, which can be accessed here: [Flock Safety - San Mateo CA PD Transparency Portal](#). Please note that this is our internal search history which has been made publicly available, not the search history of external agencies.

If you have any questions, please reply to this message.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 7/29/2026 11:53:59 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 7/29/2026 and given the reference number **W013137-072926** for tracking purposes.

Record(s) Requested: Under the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records.

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segregable portions (Gov. Code § 7922.525(b)), and stated that each entry in the Department's Flock network audit "documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search." This request does not seek those fields.

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Thank you for your assistance.

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 7/29/2026 11:53:57 PM, Brian C wrote:

Request Created on Public Portal